

**SUBSTITUTE FOR
SENATE BILL NO. 903**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1280h.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 1280h. (1) The board of a school district or board of**
2 **directors of a public school academy that receives funds under**
3 **section 22b(4) of the state school aid act of 1979, MCL 388.1622b,**
4 **must do all of the following:**

5 **(a) Use funds received to address student achievement and**
6 **success, including, but not limited to, literacy, mathematics, and**
7 **providing direct English language development instruction.**

8 **(b) Administer to English language learners the English**
9 **language proficiency assessment known as the "WIDA ACCESS for**



English language learners" or the "WIDA Alternate ACCESS".

(c) Agree to meet or exceed the minimum number of minutes per week, as determined by the department under subsection (2), that the school district or public school academy provides direct English language development instruction.

(d) Implement a multi-tiered system of supports that is an evidence-based framework that uses data-driven problem solving to integrate academic and behavioral instruction and that uses intervention delivered to all pupils in varying intensities based on pupil needs. The multi-tiered system of supports must be implemented in grades K to 12, or, if the school district or public school academy does not operate all of grades K to 12, for all of the grades it operates. The multi-tiered system of supports described in this subdivision must provide at least all of the following essential components:

(i) Team-based leadership.

(ii) A tiered delivery system.

(iii) Selection and implementation of instruction, interventions, and supports.

(iv) A comprehensive screening and assessment system.

(v) Continuous data-based decision making.

(e) Support pupil needs for pupils counted toward the school district's or public school academy's weighted pupil membership, including, but not limited to, items identified in a district's Michigan Integrated Continuous Improvement Process (MICIP) plan. An amount not to exceed 2% of the amount received under section 22b(4) of the state school aid act of 1979, MCL 388.1622b, may be used to support administrative costs related to complying with this section. Administrative costs include, but are not limited to,



1 central office salaries and benefits, business and fiscal services,
2 and school administrative staff and expenses, and do not include
3 costs associated with direct instructional staff working with
4 pupils counted toward the weighted pupil membership.

5 (f) Provide information to the department, in a form and
6 manner determined by the department, necessary for the department
7 to monitor programs and services described in this section for
8 compliance with the requirements of this section, and to ensure the
9 multi-tiered system of supports and English language learner
10 programs are implemented with fidelity.

11 (g) Allow access for the department or the department's
12 designee to audit all records related to the program for which it
13 receives those funds. The district shall reimburse this state for
14 all disallowances found in any audit.

15 (h) Communicate the following information to parents and legal
16 guardians at least annually, as applicable for grades offered by
17 the school district or public school academy:

18 (i) Literacy-related results for the school district or public
19 school academy, including multiyear trend data, from the grade 3
20 Michigan student test of educational progress (M-STEP), the grade 7
21 Michigan student test of educational progress (M-STEP), and the SAT
22 for pupils who are economically disadvantaged or English language
23 learners. The school district or public school academy shall ensure
24 that information described in this subparagraph is reported in a
25 manner that safeguards pupil privacy.

26 (ii) Information detailing the amount of funding received under
27 section 22b(4) of the state school aid act of 1979, MCL 388.1622b,
28 how the school district or public school academy distributed that
29 funding, and what evidence-based interventions were implemented



1 with that funding. The information reported under this subparagraph
2 must include a method, including contact information, for parents
3 or legal guardians to provide feedback on the use of the funding as
4 well as to seek more information about services and interventions
5 available for their children.

6 (2) The department shall establish English language learner
7 program models that establish a minimum number of minutes per week
8 that school districts and public school academies must provide
9 direct English language development instruction for pupils
10 according to the pupil's proficiency levels. The program models
11 described in this subsection must be compliant with federal
12 requirements related to English language learner program services.

13 (3) The department shall monitor school districts and public
14 school academies for compliance with this section and may require
15 school districts and public school academies to provide any
16 information to the department, in a form and manner determined by
17 the department, necessary to fulfill this requirement.

18 (4) As used in this section, "English language learner" and
19 "weighted pupil membership" mean those terms as defined in section
20 6 of the state school aid act of 1979, MCL 388.1606.

21 Enacting section 1. This amendatory act does not take effect
22 unless Senate Bill No. 860 of the 103rd Legislature is enacted into
23 law.